Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Tuesday, August 31, 2021

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Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Land Acknowledgement

Mayor Collier called the meeting to order at 9:01 a.m. Regional Councillor Lee acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Departmental Reports

3.1. PDS-2021-32: Lease Agreement: Durham Distillery Ltd. Mill Street Fire Hall (25 Mill Street)

Council Members asked questions regarding the retail component, public engagement initiatives, projected revenues, conditions of the lease agreement, exterior design elements, communication strategies for public education, future opportunities to lease underutilized Town owned facilities, and property tax implications. Geoff Romanowski, Director of Planning & Development Services, Don Terry, Acting Manager of Economic Development, Shane Baker, Chief Administrative Officer, and Dianne Valentim, Director of Finance/Treasurer, responded to questions from Council Members.

Moved by: M. Crawford
Seconded by: A. Khan

1. That the Chief Administrative Officer be authorized to negotiate a Lease Agreement with The Durham Distillery Ltd. for the temporary use of the Mill Street Fire Hall (25 Mill Street) to facilitate their relocation to the Town of Ajax as part of our effort to attract, nurture, and grow fledgling innovative businesses in Town-owned facilities that are unused or underutilized; and

2. That the Mayor and Clerk be authorized to execute a Lease Agreement with The Durham Distillery Ltd. for the temporary use of the Mill Street Fire Hall (25 Mill Street), as approved by the Chief Administrative Officer.

CARRIED

4. Discussion

4.1 Automated Speed Enforcement Update

John Grieve, Transportation Supervisor, provided an update on the status of the Automated Speed Enforcement Program. J. Grieve discussed radar message board locations, data collection analysis, proposed camera rotation schedule, status of outstanding agreements that require execution for operation of the program, communication strategies, regulatory signage requirements, and project timelines.

Council Members asked questions regarding procurement of the camera systems, speed board installation timelines, speed board locations, communication strategies, and

timelines associated with installation of regulatory signs and camera deployment. J. Grieve and G. Romanowski responded to questions from Committee Members.

4.2 Employment Conversion Request CNR-14 – Belmont Equity (Rossland Landing) Ajax Ltd - 1, 3, 5 & 7 Rossland Road East & 901 Harwood Ave. N.

Council Members sought clarification regarding the proponent's request and staff's recommendation from the February 22, 2021 Council meeting. Council Members discussed traffic congestion, project scope, and timelines associated with the Rossland Road extension, and asked questions regarding the municipal comprehensive review process including timelines, and if the subject lands can be developed by the proponent in accordance with the current land designation. J. Grieve and G. Romanowski responded to questions from Council Members.

Motion to Reconsider

Moved by: S. Collier
Seconded by: None

That Council reconsider its resolution not to support Employment Conversion Request CNR-14 – Belmont Equity (Rossland Landing) Ajax Ltd. – 1, 3, 5 & 7 Rossland Road East & 901 Harwood Avenue North, originally adopted at the February 22, 2021 Council meeting.

MOTION LOST (no seconder)

4.3 Covid-19 Proof-of-Vaccination

Mayor Collier vacated the Chair. Regional Councillor Dies assumed the Chair.

Mayor Collier introduced the motion and reviewed its contents. Council Members asked questions regarding policy framework, workplace impacts, and timeframe for receipt of the legal opinion. S. Baker and Christie McLardie, Manager of Public & Strategic Affairs, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: S. Lee

1. **THAT** the Ontario government be requested to establish a province-wide proof-of-vaccination system and accompanying protocols for designated discretionary services and activities to avoid further shutdowns and keep the public safe amid a fourth wave of Covid-19.

2. **THAT** the Town's Municipal Emergency Control Group develop and implement a mandatory Covid-19 vaccination policy requiring all Town employees to disclose and provide proof of vaccination status based on advice from legal counsel. The policy should consider valid/reasonable human rights and medical exemptions.

3. **THAT** Ajax Council direct the Town's Municipal Emergency Control Group to work with Durham Region Public Health to consider proof-of-vaccination protocols for public access to discretionary Town programs, services and activities in the interest of public safety.

4. **THAT** all Members of Ajax Council disclose and provide proof of Covid-19 vaccination status to Human Resource Services by September 7, 2021.

5. **THAT** this motion be sent to Doug Ford, Premier of Ontario, Christine Elliott, Deputy Premier of Ontario and Minister of Health, Rod Phillips, Minister of Long-Term Care, John Henry, Chair of Durham Region, Dr. Robert Kyle, Commissioner & Medical Officer of Health at The Regional Municipality of Durham, and other Durham municipalities.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Regional Councillor Dies

Opposed: None

5. Motions

5.1 Amendments to the Road Occupancy and Zoning By-laws with Relation to Boulevard Encroachments and Driveway Widenings

Regional Councillor Dies vacated the Chair. Regional Councillor Lee assumed the Chair.

Mayor Collier and Councillor Khan introduced the motion and reviewed its contents. Council Members asked questions regarding amendments to the policy framework, compliance, and enforcement. Kassandra Cruciano, Grants, Partnerships and Strategic Initiatives Coordinator, and Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: A. Khan

WHEREAS some residents of Ajax have made alterations to their properties and adjacent municipal boulevards for beautification and increased parking opportunities;

AND WHEREAS Council directed staff to undertake a review of the Town's existing by-laws and policies and provide recommendations to increase landscaping and parking opportunities on public and private properties in 2018;

AND WHEREAS Council approved the recommendations proposed by staff through the enactment of the Boulevard Encroachment Policy, and amendments to the Road Occupancy and Zoning By-laws in 2020 and 2021, respectively;

AND WHEREAS minor changes to the Boulevard Encroachment Policy and Road Occupancy and Zoning By-laws are required to further simplify the requirements for residents looking to beautify or accommodate additional parking to their properties;

THEREFORE BE IT NOW RESOLVED:

1. **THAT** the Road Occupancy By-law and the Boulevard Encroachment Policy be updated to reflect the following changes:

    a. Removal of the 0.3m buffer from side/rear property line requirement;

    b. Removal of the restriction on river rock, pea gravel, loose rocks, and loose gravel;

    c. Removal of the visual delineation requirement from a simple encroachment, and require visual delineation for only complex encroachments that permit hardscaping beyond the maximum apron width of 1.8m on the entry side of the dwelling and 0.6m on the opposite side; and

    d. Remove the maximum height requirement for tree rings

2. **THAT** any required changes to the Zoning By-law to ensure congruency with the Road Occupancy By-law and Boulevard Encroachment Policy for landscaping alterations on private property, as appropriate, be undertaken through the Comprehensive Review process currently underway;

3. **THAT**, pending enactment of the required changes to the Zoning By-law referenced in the above clause, By-law Services is directed not to pursue enforcement activities on any infractions related thereto, in order to uphold the intent of the forthcoming Zoning By-law Amendment.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Khan, Councillor Tyler Morin, Regional Councillor Lee

Opposed: Councillor Bower, Regional Councillor Dies

Regional Councillor Lee vacated the Chair. Regional Councillor Dies assumed the Chair.

5.2 **Cities Race to Zero Pledge**

Mayor Collier and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: S. Lee

WHEREAS the next decade will decide the future for humanity. Delivering a green and just recovery to the COVID-19 crisis; creating strong, fair economies that serve everyone; and cutting greenhouse gas emissions quickly enough to limit global heating to the 1.5°C target of the Paris Agreement, are one and the same thing. None are possible without the others. Success in all is the only way to prevent a catastrophic crisis;

AND WHEREAS the Race to Zero is a global initiative led by the COP26 Presidency and High-Level Climate Champions to rally leadership and action from businesses, cities, regions and investors for a healthy, resilient, zero carbon transition that prevents future threats, creates decent jobs, and unlocks inclusive, sustainable growth. Together, this coalition will build momentum around the shift to a decarbonized economy ahead of COP26, where governments must strengthen their contributions to the Paris Agreement. This will send governments a resounding signal that cities, regions, businesses and investors are united in meeting the Paris goals and creating a more inclusive and resilient economy;

AND WHEREAS Cities Race to Zero brings together all those who share our vision for a better future based on a set of principles that address equity together with the environment, and who strive to build a coalition across business, labor unions, youth climate activists and civil society, to transform the world;

AND WHEREAS C40 Cities, the Global Covenant of Mayors for Climate & Energy (GCoM), ICLEI – Local Governments for Sustainability (ICLEI), United Cities and Local Governments (UCLG), CDP, the World Wide Fund for Nature (WWF) and the World Resources Institute (WRI) have come together to mobilize an unprecedented coalition of cities committed to setting science-based targets and start implementing inclusive and resilient climate action ahead of and beyond the COP26 in Glasgow. This is the Cities Race to Zero effort, to commit cities and municipalities to the Race to Zero, in support of the COP26 Roadmap of Local Governments and Municipal Authorities (LGMA) Constituency to the UNFCCC;

AND WHEREAS Ajax Council declared a climate emergency in 2019, and established new corporate GHG emission reduction targets in 2021, including a 100% GHG emissions reduction (below 2019 levels) by 2050;

NOW THEREFORE BE IT RESOLVED THAT Ajax Council commits to joining the Race to Zero by pledging to do the following:

- recognizing the global climate emergency;
- committing to keeping global heating below the 1.5°Celsius goal of the Paris Agreement;
- committing to putting inclusive climate action at the center of all urban decision-making, to create thriving and equitable communities for everyone; and
- inviting partners – municipalities, businesses, unions, investors, and residents – to join C40 Cities in recognizing the global climate emergency and help us deliver on science-based action to overcome it.

CARRIED

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Regional Councillor Dies

Opposed: None

Regional Councillor Dies vacated the Chair. Mayor Collier assumed the Chair.

Closed Session (11:04 a.m.)

6. Authority to Hold a Closed Session

Moved by: L. Bower
Seconded by: R. Tyler Morin

That Council convene to a Closed Session pursuant to Section 239 (2)(b) of the *Municipal Act, 2001,* as amended, to discuss personal matters about an identifiable individual, including municipal or local board employees.

CARRIED

6.1 Appointments to Local Boards

Open Meeting (11:42 a.m.)

Ratify Directions from Closed Session

Moved by: L. Bower
Seconded by: R. Tyler Morin

That all directions approved in the Closed Session be ratified.

CARRIED

Moved by: S. Lee
Seconded by: M. Crawford

That By-law number 50-2021, being a by-law to appoint a Board of Management for the Downtown Ajax Business Improvement Area, be read a first, second and third time and passed.

CARRIED

7. Confirming By-law

Moved by: M. Crawford
Seconded by: L. Bower

That By-law number 49-2021 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on August 31, 2021 be read a first, second and third time and passed.

CARRIED

8. Adjournment

Moved by: R. Tyler Morin
Seconded by: S. Lee

That the August 31, 2021 special meeting of the Council of the Town of Ajax be adjourned. (11:44 a.m.)

CARRIED

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Mayor

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D-Clerk